

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 809

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO THE CHILD PROTECTIVE ACT; AMENDING SECTION 16-1602, IDAHO CODE, TO REVISE DEFINITIONS; AMENDING SECTION 16-1615, IDAHO CODE, TO REVISE TERMINOLOGY; AMENDING SECTION 16-1619, IDAHO CODE, TO REVISE TERMINOLOGY; AMENDING SECTION 16-1620, IDAHO CODE, TO REVISE TERMINOLOGY; AMENDING SECTION 16-1621, IDAHO CODE, TO REVISE TERMINOLOGY; AMENDING SECTION 16-1622, IDAHO CODE, TO REVISE TERMINOLOGY; AMENDING CHAPTER 16, TITLE 16, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 16-1625A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING SCHOOL OF ORIGIN HEARINGS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1602, Idaho Code, be, and the same is hereby amended to read as follows:

16-1602. DEFINITIONS. For purposes of this chapter:

(1) "Abused" means any case in which a child has been the victim of:

(a) Conduct or omission resulting in skin bruising, bleeding, malnutrition, burns, fracture of any bone, head injury, soft tissue swelling, failure to thrive or death, and such condition or death is not justifiably explained, or where the history given concerning such condition or death is at variance with the degree or type of such condition or death, or the circumstances indicate that such condition or death may not be the product of an accidental occurrence; or

(b) Sexual conduct, including rape, molestation, incest, commercial sexual activity, obscene or pornographic photographing, filming or depiction for commercial purposes, human trafficking as defined in chapter 86, title 18, Idaho Code, or other similar forms of sexual exploitation harming or threatening the child's health or welfare or mental injury to the child.

(2) "Abandoned" means the failure of the parent to maintain a normal parental relationship with his child including, but not limited to, reasonable support or regular personal contact. Failure to maintain this relationship without just cause for a period of one (1) year shall constitute prima facie evidence of abandonment.

(3) "Adaptive equipment" means any piece of equipment or any item that is used to increase, maintain or improve the parenting capabilities of a parent with a disability.

(4) "Adjudicatory hearing" means a hearing to determine:

(a) Whether the child comes under the jurisdiction of the court pursuant to the provisions of this chapter;

(b) Whether continuation of the child in the home would be contrary to the child's welfare and whether the best interest of the child requires

1 protective supervision or vesting legal custody of the child in an au-
2 thorized agency.

3 (5) "Age of developmentally appropriate" means:

4 (a) Activities that are generally accepted as suitable for children of
5 the same chronological age or level of maturity or that are determined
6 to be developmentally appropriate for a child, based on the development
7 of cognitive, emotional, physical and behavioral capacities that are
8 typical for an age or age group; and

9 (b) In the case of a specific child, activities or items that are suit-
10 able for the child based on the developmental stages attained by the
11 child with respect to the cognitive, emotional, physical and behavioral
12 capacities of the child.

13 (6) "Aggravated circumstances" includes, but is not limited to:

14 (a) Circumstances in which the parent has engaged in any of the follow-
15 ing:

16 (i) Abandonment, chronic abuse or chronic neglect of the child.
17 Chronic neglect or chronic abuse of a child shall consist of abuse
18 or neglect that is so extreme or repetitious as to indicate that
19 return of the child to the home would result in unacceptable risk
20 to the health and welfare of the child.

21 (ii) Sexual abuse against a child of the parent. Sexual abuse, for
22 the purposes of this section, includes any conduct described in
23 section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101,
24 or 18-6604, or chapter 86, title 18, Idaho Code.

25 (iii) Torture of a child. Any conduct listed in section
26 18-8303(1), Idaho Code; battery or an injury to a child that re-
27 sults in serious or great bodily injury to a child; voluntary
28 manslaughter of a child, or aiding or abetting such voluntary
29 manslaughter, soliciting such voluntary manslaughter or attempt-
30 ing or conspiring to commit such voluntary manslaughter;

31 (b) The parent has committed murder, aided or abetted a murder, so-
32 licited a murder or attempted or conspired to commit murder; or

33 (c) The parental rights of the parent to another child have been termi-
34 nated involuntarily.

35 (7) "Authorized agency" means the department, a local agency, a person,
36 an organization, corporation, benevolent society or association licensed
37 or approved by the department or the court to receive children for control,
38 care, maintenance or placement.

39 (8) "Caregiver" means a foster parent with whom a child in foster care
40 has been placed or a designated official for a child care institution in
41 which a child in foster care has been placed.

42 (9) "Case plan hearing" means a hearing to approve, modify or reject the
43 case plan as provided in section 16-1621, Idaho Code.

44 (10) "Child" means an individual who is under the age of eighteen (18)
45 years.

46 (11) "Child advocacy center" or "CAC" means an organization that ad-
47 heres to national best practice standards established by the national
48 membership and accrediting body for children's advocacy centers and that
49 promotes a comprehensive and coordinated multidisciplinary team response to
50 allegations of child abuse by maintaining a child-friendly facility at which

1 appropriate services are provided. These services may include forensic in-
2 terviews, forensic medical examinations, mental health services and other
3 related victim services.

4 (12) "Circumstances of the child" includes, but is not limited to, the
5 joint legal custody or joint physical custody of the child.

6 (13) "Commit" means to transfer legal and physical custody.

7 (14) "Concurrent planning" means a planning model that prepares for and
8 implements different outcomes at the same time.

9 (15) "Court" means district court or magistrate division thereof or, if
10 the context requires, a magistrate or judge thereof.

11 (16) "Custodian" means a person, other than a parent or legal guardian,
12 to whom legal or joint legal custody of the child has been given by court or-
13 der.

14 (17) "Department" means the department of health and welfare and its au-
15 thorized representatives.

16 (18) "Disability" means, with respect to an individual, any mental or
17 physical impairment that substantially limits one (1) or more major life
18 activities of the individual including, but not limited to, self-care, man-
19 ual tasks, walking, seeing, hearing, speaking, learning or working, or a
20 record of such an impairment, or being regarded as having such an impairment.
21 Disability shall not include transvestism, transsexualism, pedophilia,
22 exhibitionism, voyeurism, other sexual behavior disorders, or substance use
23 disorders, compulsive gambling, kleptomania or pyromania. Sexual prefer-
24 ence or orientation is not considered an impairment or disability. Whether
25 an impairment substantially limits a major life activity shall be determined
26 without consideration of the effect of corrective or mitigating measures
27 used to reduce the effects of the impairment.

28 (19) "Family or household member" shall have the same meaning as in sec-
29 tion 39-6303(6), Idaho Code.

30 (20) "Foster care" means twenty-four (24) hour substitute parental care
31 for children placed away from their parents or guardians by persons who may
32 or may not be related to the children and for whom the state agency has place-
33 ment and care responsibility.

34 (21) "Foster parent" means a person or persons licensed to provide fos-
35 ter care.

36 (22) "Grant administrator" means the supreme court or any organization
37 or agency as may be designated by the supreme court in accordance with such
38 procedures as may be adopted by the supreme court. The grant administrator
39 shall administer funds from the guardian ad litem account in accordance with
40 the provisions of this chapter.

41 (23) "Guardian ad litem" means a person appointed by the court pursuant
42 to a guardian ad litem volunteer program to act as special advocate for a
43 child under this chapter.

44 (24) "Guardian ad litem coordinator" means a person or entity receiving
45 moneys from the grant administrator for the purpose of carrying out any of
46 the duties set forth in section 16-1632, Idaho Code.

47 (25) "Guardian ad litem program" means the program to recruit, train and
48 coordinate volunteer persons to serve as guardians ad litem for abused, ne-
49 glected or abandoned children.

1 (26) "Homeless," as used in this chapter, shall mean that the child is
 2 without adequate shelter or other living facilities, and the lack of such
 3 shelter or other living facilities poses a threat to the health, safety or
 4 well-being of the child.

5 (27) "Idaho network of children's advocacy centers" means an organiza-
 6 tion that provides education and technical assistance to child advocacy cen-
 7 ters and to interagency multidisciplinary teams developed pursuant to sec-
 8 tion 16-1617, Idaho Code.

9 (28) "Law enforcement agency" means a city police department, the pros-
 10 ecuting attorney of any county, state law enforcement officers, or the of-
 11 fice of a sheriff of any county.

12 (29) "Legal custody" means a relationship created by court order, which
 13 vests in a custodian the following rights and responsibilities:

14 (a) To have physical custody and control of the child, and to determine
 15 where and with whom the child shall live.

16 (b) To supply the child with food, clothing, shelter and incidental ne-
 17 cessities.

18 (c) To provide the child with care, education and discipline.

19 (d) To authorize ordinary medical, dental, psychiatric, psychologi-
 20 cal, or other remedial care and treatment for the child, including care
 21 and treatment in a facility with a program of services for children, and
 22 to authorize surgery if the surgery is deemed by two (2) physicians li-
 23 censed to practice in this state to be necessary for the child.

24 (e) Where the parents share legal custody, the custodian may be vested
 25 with the custody previously held by either or both parents.

26 (30) "Mental injury" means a substantial impairment in the intellectual
 27 or psychological ability of a child to function within a normal range of per-
 28 formance and/or behavior, for short or long terms.

29 (31) "Neglected" means a child:

30 (a) Who is without proper parental care and control, or subsistence,
 31 medical or other care or control necessary for his well-being because of
 32 the conduct or omission of his parents, guardian or other custodian or
 33 their neglect or refusal to provide them; however, no child whose parent
 34 or guardian chooses for such child treatment by prayers through spiri-
 35 tual means alone in lieu of medical treatment shall be deemed for that
 36 reason alone to be neglected or lack parental care necessary for his
 37 health and well-being, but this subsection shall not prevent the court
 38 from acting pursuant to section 16-1627, Idaho Code; or

39 (b) Whose parent, guardian or other custodian is unable to discharge
 40 the responsibilities to and for the child and, as a result of such in-
 41 ability, the child lacks the parental care necessary for his health,
 42 safety or well-being; or

43 (c) Who has been placed for care or adoption in violation of law; or

44 (d) Who is without proper education because of the failure to comply
 45 with section 33-202, Idaho Code.

46 (32) "Order to prevent removal," as described in section 16-1611(5),
 47 Idaho Code, means an order to allow a child to remain in the child's present
 48 surroundings when there is reasonable cause to believe the child is safe in
 49 the sole care of one (1) parent, legal guardian, or legal custodian and when

1 there is alleged neglect or abuse by another parent, legal guardian, or legal
2 custodian.

3 (33) "Permanency hearing" means a hearing to review, approve, reject or
4 modify the permanency plan of the department and to review reasonable ef-
5 forts in accomplishing the permanency plan.

6 (34) "Permanency plan" means a plan for a continuous residence and main-
7 tenance of nurturing relationships during the child's minority.

8 (35) "Protective supervision" is a legal status created by court order
9 in a child protective case whereby the child is in the legal custody of his or
10 her parent(s), guardian(s) or other legal custodian(s), subject to supervi-
11 sion by the department.

12 (36) "Psychotropic medication" means a drug prescribed to affect psy-
13 chological functioning, perception, behavior or mood. Psychotropic medi-
14 cations include, but are not limited to, antidepressants, mood stabilizers,
15 antipsychotics, antianxiety medications, sedatives and stimulants.

16 (37) "Qualified individual" means a trained professional or licensed
17 clinician who is not connected to or affiliated with any placement setting
18 in which children are placed by the department and who is not an employee of
19 child and family services, unless a waiver has been approved by the autho-
20 rized agency.

21 (38) "Qualified residential treatment program" means a program that has
22 a trauma-informed treatment model designed to address the needs of children
23 with serious emotional or behavioral disorders or disturbances, is able to
24 implement the treatment identified for the child by the assessment of the
25 child required under section 16-1619A(2), Idaho Code, and is licensed and
26 accredited in accordance with state and federal law.

27 (39) "Reasonable and prudent parent standard" means the standard of
28 care characterized by careful and sensible parental decisions that main-
29 tain the health, safety and best interests of a child while simultaneously
30 encouraging the emotional and developmental growth of the child that a care-
31 giver shall use when determining whether to allow a child in foster care
32 under the responsibility of the state to participate in extracurricular,
33 enrichment, cultural or social activities.

34 (40) "Relative" means a child's grandparent, great grandparent, aunt,
35 great aunt, uncle, great uncle, brother-in-law, sister-in-law, first
36 cousin, sibling and half-sibling.

37 (41) "Residual parental rights and responsibilities" means those
38 rights and responsibilities remaining with the parents after the transfer of
39 legal custody including, but not necessarily limited to, the right of visi-
40 tation, the right to consent to adoption, the right to determine religious
41 affiliation, the right to determine choice of school, the right to family
42 counseling when beneficial, and the responsibility for support.

43 (42) "School of origin" means the school in which a child is enrolled at
44 the time of placement, including private instruction by a parent or guardian
45 and any other method authorized pursuant to section 33-202, Idaho Code.

46 ~~(42)~~ (43) "Shelter care" means places designated by the department for
47 temporary care of children pending court disposition or placement.

48 ~~(43)~~ (44) "Supportive services," as used in this chapter, shall mean
49 services that assist parents with a disability to compensate for those as-
50 pects of their disability that affect their ability to care for their child

1 and that will enable them to discharge their parental responsibilities. The
 2 term includes specialized or adapted training, evaluations or assistance
 3 with effectively using adaptive equipment and accommodations that allow
 4 parents with a disability to benefit from other services including, but not
 5 limited to, Braille texts or sign language interpreters.

6 SECTION 2. That Section 16-1615, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 16-1615. SHELTER CARE HEARING. (1) Notwithstanding any other provi-
 9 sion of this chapter, when a child is taken into shelter care pursuant to sec-
 10 tion 16-1608 or 16-1611, Idaho Code, a hearing to determine whether the child
 11 should be released shall be held according to the provisions of this section.

12 (2) Each of the parents or custodian from whom the child was removed
 13 shall be given notice of the shelter care hearing. Such notice shall include
 14 the time, place, and purpose of the hearing; and, that such person is enti-
 15 tled to be represented by legal counsel. Notice as required by this subsec-
 16 tion shall be given at least twenty-four (24) hours before the shelter care
 17 hearing.

18 (3) Notice of the shelter care hearing shall be given to the parents or
 19 custodian from whom the child was removed by personal service and the return
 20 of service shall be filed with the court and to any person having joint legal
 21 or physical custody of the subject child. Provided, however, that such ser-
 22 vice need not be made where the undelivered notice is returned to the court
 23 along with an affidavit stating that such parents or custodian could not be
 24 located or were out of the state.

25 (4) The shelter care hearing may be continued for a reasonable time upon
 26 request by the parent, custodian or counsel for the child.

27 (5) If, upon the completion of the shelter care hearing, it is shown
 28 that:

29 (a) A petition has been filed; and

30 (b) There is reasonable cause to believe the child comes within the ju-
 31 risdiction of the court under this chapter and either:

32 (i) The department made reasonable efforts to eliminate the need
 33 for shelter care but the efforts were unsuccessful; or

34 (ii) The department made reasonable efforts to eliminate the need
 35 for shelter care but was not able to safely provide preventive ser-
 36 vices; and

37 (c) The child could not be placed in the temporary sole custody of a par-
 38 ent having joint legal or physical custody; and

39 (d) It is contrary to the welfare of the child to remain in the home; and

40 (e) It is in the best interests of the child to remain in temporary shel-
 41 ter care pending the conclusion of the adjudicatory hearing.

42 The court shall issue, within twenty-four (24) hours of such hearing, a shel-
 43 ter care order placing the child in the temporary legal custody of the de-
 44 partment or other authorized agency. Any evidence may be considered by the
 45 court which is of the type which reasonable people may rely upon.

46 (6) Upon finding reasonable cause pursuant to subsection (5) (b) of this
 47 section, the court shall order an adjudicatory hearing to be held as soon as
 48 possible, but in no event later than thirty (30) days from the date the peti-

tion was filed. In addition, the court shall inquire whether there is reason to believe that the child is an Indian child.

(7) Upon entry of an order of shelter care, the court shall inquire:

(a) If the child is of school age, about the department's efforts to keep the child in the school ~~at which the child is currently enrolled of~~ origin; and

(b) If a sibling group was removed from their home, about the department's efforts to place the siblings together, or if the department has not placed or will not be placing the siblings together, about a plan to ensure frequent visitation or ongoing interaction among the siblings, unless visitation or ongoing interaction would be contrary to the safety or well-being of one (1) or more of the siblings.

(8) If the court does not find that the child should be placed in or remain in shelter care under subsection (5) of this section, the child shall be released.

(9) If the court does not find reasonable cause pursuant to subsection (5) (b) of this section, the court shall dismiss the petition.

SECTION 3. That Section 16-1619, Idaho Code, be, and the same is hereby amended to read as follows:

16-1619. ADJUDICATORY HEARING -- CONDUCT OF HEARING -- CONSOLIDATION. (1) When a petition has been filed, the court shall set an adjudicatory hearing to be held no later than thirty (30) days after the filing of the petition.

(2) A pretrial conference shall be held outside the presence of the court within three (3) to five (5) days before the adjudicatory hearing. Investigative reports required under section 16-1616, Idaho Code, shall be delivered to the court with copies to each of the parents and other legal custodians, guardian ad litem and attorney for the child prior to the pretrial conference.

(3) At the adjudicatory hearing, parents or guardians with disabilities shall have the right to introduce admissible evidence regarding how use of adaptive equipment or supportive services may enable the parent or guardian to carry out the responsibilities of parenting the child by addressing the reason for the removal of the child.

(4) If a preponderance of the evidence at the adjudicatory hearing shows that the child comes within the court's jurisdiction under this chapter upon the grounds set forth in section 16-1603, Idaho Code, the court shall so decree and in its decree shall make a finding on the record of the facts and conclusions of law upon which it exercises jurisdiction over the child.

(5) Upon entering its decree, the court shall consider any information relevant to the disposition of the child but in any event shall:

(a) Place the child under the protective supervision of the department for an indeterminate period not to exceed the child's eighteenth birthday; or

(b) Vest legal custody in the department or other authorized agency subject to residual parental rights and subject to full judicial review by the court and, when contested by any party, judicial approval of all matters relating to the custody of the child by the department

1 or other authorized agency. If the department has placed the child in
 2 a qualified residential treatment program, the court shall approve or
 3 disapprove the placement within sixty (60) days of placement in accor-
 4 dance with section 16-1619A, Idaho Code.

5 (6) If the court vests legal custody in the department or other autho-
 6 rized agency, the court shall make detailed written findings based on facts
 7 in the record that, in addition to the findings required in subsection (4) of
 8 this section, continuation of residence in the home would be contrary to the
 9 welfare of the child and that vesting legal custody with the department or
 10 other authorized agency would be in the best interests of the child. In ad-
 11 dition, the court shall make detailed written findings based on facts in the
 12 record as to whether the department made reasonable efforts to prevent the
 13 placement of the child in foster care, including findings, when appropriate,
 14 that:

15 (a) Reasonable efforts were made but were not successful in eliminating
 16 the need for foster care placement of the child;

17 (b) The department made reasonable efforts to prevent removal but was
 18 not able to safely provide preventive services;

19 (c) Reasonable efforts to temporarily place the child with related per-
 20 sons were made but were not successful; or

21 (d) Reasonable efforts to reunify the child with one (1) or both parents
 22 were not required because aggravated circumstances were present. If
 23 aggravated circumstances are found, a permanency hearing for the child
 24 shall be held within thirty (30) days of the determination of aggravated
 25 circumstances.

26 (7) (a) The court shall also inquire regarding:

27 (i) Whether there is reason to believe that the child is an Indian
 28 child;

29 (ii) The efforts that have been made since the last hearing to de-
 30 termine whether the child is an Indian child; and

31 (iii) The department's efforts to work with all tribes of which the
 32 child may be a member to verify whether the child is a member or el-
 33 igible for membership.

34 (b) In addition, if the court vests legal custody of the child in the
 35 department or other authorized agency, the court shall inquire as to:

36 (i) If the child is of school age, the department's efforts to
 37 keep the child in the school ~~at which the child is currently en-~~
 38 ~~rolled of origin~~; and

39 (ii) If a sibling group was removed from the home, the depart-
 40 ment's efforts to place the siblings together, or if the depart-
 41 ment has not placed or will not be placing the siblings together,
 42 about a plan to ensure frequent visitation or ongoing interac-
 43 tion among the siblings, unless visitation or ongoing interaction
 44 would be contrary to the safety or well-being of one (1) or more of
 45 the siblings.

46 (c) If the court vests legal custody of the child in the department
 47 or other authorized agency and the child is being treated with psy-
 48 chotropic medication, these additional requirements shall apply:

(i) The department shall report to the court the medications and dosages prescribed for the child and the medical professional who prescribed the medication; and

(ii) The court shall inquire about and may make any additional inquiry relevant to the use of psychotropic medications.

(8) A decree vesting legal custody in the department shall be binding upon the department and may continue until the child's eighteenth birthday.

(9) A decree vesting legal custody in an authorized agency other than the department shall be for a period of time not to exceed the child's eighteenth birthday and on such other terms as the court shall state in its decree to be in the best interests of the child and which the court finds to be acceptable to such authorized agency.

(10) If the court does not find that the child comes within the jurisdiction of this chapter pursuant to subsection (4) of this section, it shall dismiss the petition.

(11) Where legal custody of a child is vested in the department, any party or counsel for a child may, at or after the disposition phase of an adjudicatory hearing, file and serve a written motion to contest matters relating to the placement of the child by the department. The hearing must be held no later than thirty (30) days from the date the motion was filed. If the court approves the placement, the court shall enter an order denying the motion. If the court does not approve the placement, the court shall enter an order directing the department to identify and implement an alternative placement in accordance with applicable law. The court shall consider everything necessary or proper in the best interests of the children. The court shall consider all relevant factors, which may include:

(a) The wishes of the child regarding the child's custodian;

(b) The wishes of the child's parent or parents regarding the child's custody, if appropriate;

(c) The interaction and interrelationship of the child with his parent or parents or foster parent or foster parents, and the child's siblings;

(d) The child's adjustment to his home, school and community;

(e) The character and circumstances of all individuals involved;

(f) The need to promote continuity and stability in the life of the child; and

(g) A history of domestic violence as defined in section 39-6303, Idaho Code, whether or not in the presence of the child, or a conviction for lewd and lascivious conduct or felony injury to a child.

SECTION 4. That Section 16-1620, Idaho Code, be, and the same is hereby amended to read as follows:

16-1620. FINDING OF AGGRAVATED CIRCUMSTANCES -- PERMANENCY PLAN -- HEARING. (1) After a judicial determination that reasonable efforts to return the child to his home are not required because aggravated circumstances were found to be present, the court shall hold a permanency hearing within thirty (30) days after the finding and every twelve (12) months thereafter for as long as the court has jurisdiction. The department shall prepare a permanency plan and file the permanency plan with the court at least five (5) days prior to the permanency hearing. If the permanency plan has a goal of termination of parental rights and adoption, the department shall file the

1 petition to terminate as required in section 16-1624(2), Idaho Code. Copies
2 of the permanency plan shall be delivered to the parents and other legal
3 guardians, prosecuting attorney or deputy attorney general, the guardian ad
4 litem and attorney for the child.

5 (2) The permanency plan shall have a permanency goal of termination of
6 parental rights and adoption, guardianship or, for youth age sixteen (16)
7 years and older only, another planned permanent living arrangement and shall
8 set forth the reasonable efforts necessary to finalize the permanency goal.

9 (3) The permanency plan shall also:

10 (a) Identify the services to be provided to the child, including ser-
11 vices to identify and meet any educational, emotional, physical or de-
12 velopmental needs the child may have, to assist the child in adjusting
13 to the placement or to ensure the stability of the placement;

14 (b) Address all options for permanent placement of the child, including
15 consideration of options for in-state and out-of-state placement of the
16 child;

17 (c) Address the advantages and disadvantages of each option and include
18 a recommendation as to which option is in the child's best interests;

19 (d) Specifically identify the actions necessary to implement the rec-
20 ommended option;

21 (e) Specifically set forth a schedule for accomplishing the actions
22 necessary to implement the permanency goal;

23 (f) Address the options for maintaining the child's connection to the
24 community, including individuals with a significant relationship to
25 the child, and organizations or community activities with which the
26 child has a significant connection. This shall also include the efforts
27 made to ensure educational stability for the child, the efforts to keep
28 the child in the school ~~in which the child is enrolled at the time of~~
29 ~~placement of origin~~, or the reasons why remaining in that school is not
30 in the best interests of the child;

31 (g) Document that siblings were placed together or, if siblings were
32 not placed together, document the efforts made to place siblings to-
33 gether, the reasons why siblings were not placed together, and a plan
34 for ensuring frequent visitation or ongoing interaction between the
35 siblings, unless visitation or ongoing interaction would be contrary to
36 the safety or well-being of one (1) or more of the siblings;

37 (h) For youth age fourteen (14) years and older:

38 (i) Identify the services needed to assist the youth to make the
39 transition from foster care to successful adulthood; and

40 (ii) Document the youth's rights in regard to education, health,
41 visitation, court participation and receipt of an annual credit
42 report, including a signed acknowledgment by the department that
43 the youth was provided with a written copy of these rights and that
44 the rights were explained to the youth in an age-appropriate or de-
45 velopmentally appropriate manner;

46 (i) For youth age sixteen (16) years and older with a proposed perma-
47 nency goal of another planned permanent living arrangement, document:

48 (i) The intensive, ongoing, and, as of the date of the hearing,
49 unsuccessful efforts made to place the youth with a parent, in an
50 adoptive placement, in a guardianship, or in the legal custody of

1 the department in a placement with a fit and willing relative, in-
2 cluding an adult sibling;
3 (ii) Why another planned permanent living arrangement is the best
4 permanency plan for the youth and compelling reasons why, as of
5 the date of the permanency hearing, it would not be in the best in-
6 terests of the youth to be placed permanently with a parent, in an
7 adoptive placement, in a guardianship, or in the legal custody of
8 the department in a placement with a fit and willing relative, in-
9 cluding an adult sibling;
10 (iii) The steps that the department has taken to ensure that the
11 youth's foster parents or child care institution are following the
12 reasonable and prudent parent standard when determining whether
13 to allow the youth in their care to participate in extracurricu-
14 lar, enrichment, cultural and social activities; and
15 (iv) The opportunities provided to the youth to engage in age-ap-
16 propriate or developmentally appropriate activities;
17 (j) If there is reason to believe the child is an Indian child and there
18 has been no final determination as to the child's status as an Indian
19 child, document:
20 (i) The efforts made to determine whether the child is an Indian
21 child; and
22 (ii) The department's efforts to work with all tribes of which the
23 child may be a member to verify whether the child is a member or el-
24 igible for membership; and
25 (k) Identify the prospective adoptive parents, if known; if the
26 prospective adoptive parents are not known, the department shall amend
27 the plan to name the proposed adoptive parents as soon as such persons
28 become known.
29 (4) The court shall hold a permanency hearing to determine whether the
30 best interests of the child are served by adopting, rejecting or modifying
31 the permanency plan proposed by the department. At each permanency hearing:
32 (a) For youth age twelve (12) years and older, unless good cause is
33 shown, the court shall ask the youth about his desired permanency out-
34 come and consult with the youth about his current permanency plan;
35 (b) If there is reason to believe that the child is an Indian child and
36 there has not been a final determination regarding the child's status as
37 an Indian child, the court shall:
38 (i) Inquire about the efforts that have been made since the last
39 hearing to determine whether the child is an Indian child; and
40 (ii) Determine that the department is using active efforts to work
41 with all tribes of which the child may be a member to verify whether
42 the child is a member or eligible for membership;
43 (c) If the child is being treated with psychotropic medication, these
44 additional requirements shall apply:
45 (i) The department shall report to the court the medication and
46 dosage prescribed for the child and the medical professional who
47 prescribed the medication; and
48 (ii) The court shall inquire as to, and may make any additional
49 inquiry relevant to, the use of psychotropic medication; and

1 (d) If a child is in the legal custody of the department and the court
 2 has approved placement of the child in a qualified residential treat-
 3 ment program, then at each hearing pursuant to this section and each
 4 hearing held pursuant to section 16-1622, Idaho Code, the department
 5 shall document:

6 (i) That ongoing assessment of the strengths and needs of the
 7 child continues to support the determination that the needs of
 8 the child cannot be met through placement in a foster family home,
 9 that the placement in a qualified residential treatment program
 10 provides the most effective and appropriate level of care for the
 11 child that is in the least restrictive environment, and that the
 12 placement is consistent with the short- and long-term goals for
 13 the child, as specified in the permanency plan for the child;

14 (ii) The specific treatment or service needs that will be met for
 15 the child in the placement and the length of time the child is ex-
 16 pected to need the treatment or services; and

17 (iii) The efforts made by the department to prepare the child to
 18 return home or to be placed with a fit and willing relative, with
 19 a legal guardian, with an adoptive parent, or in a foster family
 20 home.

21 (5) Notice of the permanency hearing shall be provided to the parents
 22 and other legal guardians, prosecuting attorney or deputy attorney general,
 23 guardian ad litem, attorney for the child, the department and foster par-
 24 ents; provided however, that foster parents are not thereby made parties to
 25 the child protective act action.

26 (6) The permanency plan as approved by the court shall be entered into
 27 the record as an order of the court. The order may include interim and fi-
 28 nal deadlines for implementing the permanency plan and finalizing the perma-
 29 nency goal.

30 (7) For youth with a proposed or current permanency goal of another
 31 planned permanent living arrangement, at each permanency hearing the court
 32 shall make written, case-specific findings that as of the date of the perma-
 33 nency hearing another planned permanent living arrangement is the best per-
 34 manency plan for the youth and that there are compelling reasons why it is not
 35 in the youth's best interests to be placed permanently with a parent, in an
 36 adoptive placement, in a guardianship, or in the legal custody of the depart-
 37 ment in a placement with a fit and willing relative, including an adult sib-
 38 ling.

39 (8) The court may authorize the department to suspend further efforts
 40 to reunify the child with the child's parent, pending further order of the
 41 court, when a petition or other motion is filed in a child protection pro-
 42 ceeding seeking a determination of the court that aggravated circumstances
 43 were present.

44 SECTION 5. That Section 16-1621, Idaho Code, be, and the same is hereby
 45 amended to read as follows:

46 16-1621. CASE PLAN HEARING -- NO FINDING OF AGGRAVATED CIRCUM-
 47 STANCES. (1) In every case in which the child is determined to be within
 48 the jurisdiction of the court and there is no judicial determination that
 49 aggravated circumstances were present, the department shall prepare a writ-

1 ten case plan, including cases in which the parent(s) is incarcerated. The
 2 court shall schedule a case plan hearing to be held within thirty (30) days
 3 after the adjudicatory hearing. The case plan shall be filed with the court
 4 no later than five (5) days prior to the case plan hearing. Copies of the
 5 case plan shall be delivered to the parents and other legal guardians, the
 6 prosecuting attorney or deputy attorney general, the guardian ad litem and
 7 attorney for the child.

8 (a) The court shall hold a case plan hearing to determine whether the
 9 best interests of the child are served by adopting, rejecting or modify-
 10 ing the case plan proposed by the department.

11 (b) If there is reason to believe that the child is an Indian child and
 12 there has not been a final determination regarding the child's status as
 13 an Indian child, the court shall:

14 (i) Inquire about the efforts that have been made since the last
 15 hearing to determine whether the child is an Indian child; and

16 (ii) Determine that the department is using active efforts to work
 17 with all tribes of which the child may be a member to verify whether
 18 the child is a member or eligible for membership.

19 (c) If the child is being treated with psychotropic medication, the
 20 court shall inquire as to, and may make any additional inquiry relevant
 21 to, the use of psychotropic medication.

22 (2) Notice of the case plan hearing shall be provided to the parents and
 23 other legal guardians, the prosecuting attorney or deputy attorney general,
 24 guardian ad litem, attorney for the child, the department, and foster par-
 25 ents. Although foster parents are provided notice of this hearing, they are
 26 not parties to the child protective act action.

27 (3) If the child is placed in the legal custody of the department, the
 28 case plan filed by the department shall set forth reasonable efforts that
 29 will be made to make it possible for the child to return home. The case plan
 30 shall also:

31 (a) Identify the services to be provided to the child, including ser-
 32 vices to identify and meet any educational, emotional, physical or de-
 33 velopmental needs the child may have, and to assist the child in adjust-
 34 ing to the placement or to ensure the stability of the placement. For
 35 youth age fourteen (14) years and older:

36 (i) Identify the services needed to assist the youth in making the
 37 transition to successful adulthood; and

38 (ii) Document the youth's rights in regard to education and
 39 health, visitation, court participation and receipt of an an-
 40 nual credit report, including a signed acknowledgment by the
 41 department that the youth was provided with a written copy of
 42 these rights and that the rights were explained to the youth in an
 43 age-appropriate or developmentally appropriate manner;

44 (b) Address the options for maintaining the child's connection to the
 45 community:

46 (i) Include connections to individuals with a significant rela-
 47 tionship to the child and organizations or community activities
 48 with which the child has a significant connection;

49 (ii) Ensure educational stability for the child, including the
 50 efforts to keep the child in the school ~~in which the child is en-~~

1 ~~rolled at the time of placement of origin~~ or the reasons why re-
2 remaining in that school is not in the best interests of the child;

3 (iii) Include a visitation plan and identify the need for supervi-
4 sion of visitation and child support;

5 (iv) Either document that siblings were placed together or, if
6 siblings were not placed together, document the efforts made to
7 place the siblings together, the reasons why siblings were not
8 placed together and a plan for ensuring frequent visitation or
9 other ongoing interaction among siblings, unless visitation or
10 ongoing interaction would be contrary to the safety or well-being
11 of one (1) or more of the siblings; and

12 (v) If there is reason to believe the child is an Indian child and
13 there has been no final determination as to the child's status as
14 an Indian child, document:

15 1. The efforts made to determine whether the child is an In-
16 dian child; and

17 2. The department's efforts to work with all tribes of which
18 the child may be a member to verify whether the child is a
19 member or eligible for membership;

20 (c) Include a goal of reunification and a plan for achieving that
21 goal. The reunification plan shall identify all issues that need to
22 be addressed before the child can safely be returned home without de-
23 partment supervision. The court may specifically identify issues to
24 be addressed by the plan. The reunification plan shall specifically
25 identify the tasks to be completed by the department, each parent or
26 others to address each issue, including services to be made available
27 by the department to the parents and in which the parents are required
28 to participate, and deadlines for completion of each task. The case
29 plan shall state with specificity the role of the department toward each
30 parent. When appropriate, the reunification plan should identify terms
31 for visitation, supervision of visitation and child support;

32 (d) Include a concurrent permanency goal and a plan for achieving that
33 goal. The concurrent permanency goal may be one (1) of the following:
34 termination of parental rights and adoption, guardianship or, for youth
35 age sixteen (16) years or older only, another planned permanent living
36 arrangement. The concurrent plan shall:

37 (i) Address all options for permanent placement of the child,
38 including consideration of options for in-state and out-of-state
39 placement of the child;

40 (ii) Address the advantages and disadvantages of each option and
41 include a recommendation as to which option is in the child's best
42 interests;

43 (iii) Specifically identify the actions necessary to implement
44 the recommended option;

45 (iv) Specifically set forth a schedule for accomplishing the ac-
46 tions necessary to implement the concurrent permanency goal;

47 (v) Address options for maintaining the child's connection to
48 the community, including individuals with a significant relation-
49 ship to the child and organizations or community activities with
50 which the child has a significant connection;

(vi) Identify the names of the proposed adoptive parents when known if the permanency goal is termination of parental rights and adoption;

(vii) In the case of a child who has attained the age of fourteen (14) years, include the services needed to assist the child to make the transition from foster care to successful adulthood;

(viii) For youth with a proposed permanency goal of another permanent planned living arrangement, document:

1. The intensive, ongoing and, as of the date of the hearing, unsuccessful efforts made to place the youth with a parent in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling;

2. Why another planned permanent living arrangement is the best permanency goal for the youth and a compelling reason why, as of the date of the case plan hearing, it would not be in the best interests of the child to be placed permanently with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling;

3. The steps taken by the department to ensure that the youth's foster parents or child care institution are following the reasonable and prudent parent standard when making decisions about whether the youth can engage in extracurricular, enrichment, cultural and social activities; and

4. The opportunities provided to the youth to regularly engage in age-appropriate or developmentally appropriate activities; and

(ix) Identify further investigation necessary to identify or assess other options for permanent placement, to identify actions necessary to implement the recommended placement or to identify options for maintaining the child's significant connections.

(4) If the child has been placed under protective supervision of the department, the case plan filed by the department shall:

- (a) Identify the services to be provided to the child, including services to identify and meet any educational, emotional, physical or developmental needs the child may have, and to assist the child in adjusting to the placement or to ensure the stability of the placement. For youth age fourteen (14) years and older, identify the services needed to assist the youth in making the transition to successful adulthood and document the youth's rights in regard to education and health, visitation, court participation and receipt of an annual credit report, including a signed acknowledgment by the department that the youth was provided with a written copy of the youth's rights and that the rights were explained to the youth in an age-appropriate or developmentally appropriate manner. The plan shall also address options for maintaining the child's connection to the community, including individuals with a significant relationship to the child and organizations or community activities with which the child has a significant connection;

(b) Identify all issues that need to be addressed to allow the child to remain at home without department supervision. The court may specifically identify issues to be addressed by the plan. The case plan shall specifically identify the tasks to be completed by the department, the parents or others to address each issue, including services to be made available by the department to the parents and in which the parents are required to participate, and deadlines for completion of each task. The plan shall state with specificity the role of the department toward each parent.

(5) If the child is placed in a qualified residential treatment program, then the case plan shall include the assessment report of the qualified individual.

(6) The case plan, as approved by the court, shall be entered into the record as an order of the court. The order may include interim and final deadlines for implementing the case plan and finalizing the permanency goal. The court's order shall provide that reasonable efforts shall be made to reunify the family in a timely manner in accordance with the case plan. Unless the child has been placed under the protective supervision of the department, the court's order shall also require the department to simultaneously take steps to accomplish the goal of reunification and the concurrent permanency goal.

SECTION 6. That Section 16-1622, Idaho Code, be, and the same is hereby amended to read as follows:

16-1622. REVIEW HEARINGS -- STATUS HEARINGS -- ANNUAL PERMANENCY HEARINGS. (1) Review hearing.

(a) A hearing for review of the child's case and permanency plan shall be held no later than six (6) months after entry of the court's order taking jurisdiction under this act and every two (2) months thereafter. The department and the guardian ad litem shall file reports to the court no later than five (5) days prior to the two (2) month review hearing. The purpose of the review hearing is:

(i) To determine:

1. The safety of the child;
2. The continuing necessity for and appropriateness of the placement;
3. The extent of compliance with the case plan; and
4. The extent of progress that has been made toward alleviating or mitigating the causes necessitating placement in foster care;

(ii) To determine or continue to investigate whether the child is an Indian child. If there is reason to believe that the child is an Indian child and there has not been a final determination regarding the child's status as an Indian child:

1. The department shall document and the court shall inquire about the efforts that have been made since the last hearing to determine whether the child is an Indian child; and
2. The department shall document and the court shall determine that the department is using active efforts to work

1 with all tribes of which the child may be a member to verify
2 whether the child is a member or eligible for membership;
3 (iii) To inquire regarding the child's educational stability. The
4 department shall document and the court shall inquire as to the ef-
5 forts made to ensure educational stability for the child, includ-
6 ing the efforts made to keep the child in the school ~~in which the~~
7 ~~child is enrolled at the time of placement of origin~~ or the reason
8 that remaining in the school is not in the child's best interests;
9 (iv) To inquire regarding sibling placement. The department
10 shall document and the court shall inquire whether siblings were
11 placed together or, if siblings were not placed together, the
12 efforts made to place siblings together, the reasons why sib-
13 lings were not placed together, and a plan for ensuring frequent
14 visitation or ongoing interaction between the siblings, unless
15 visitation or ongoing interaction would be contrary to the safety
16 or well-being of one (1) or more of the siblings;
17 (v) To inquire regarding permanency. The court shall ask each
18 youth age twelve (12) years and older about his desired permanency
19 outcome and discuss with the youth his current permanency plan.
20 For a youth age fourteen (14) years and older, the hearing shall
21 include a review of the services needed to assist the youth to make
22 the transition from foster care to successful adulthood;
23 (vi) To document efforts related to the reasonable and prudent
24 parent standard. For a youth whose permanency goal is another
25 planned permanent living arrangement, the department shall docu-
26 ment:
27 1. That the youth's foster parents or child care institution
28 is following the reasonable and prudent parent standard when
29 deciding whether the child may participate in extracurricu-
30 lar, enrichment, cultural and social activities; and
31 2. The regular, ongoing opportunities to engage in age- or
32 developmentally appropriate activities that have been pro-
33 vided to the youth;
34 (vii) To document efforts made to find a permanent placement other
35 than another planned permanent living arrangement. For a youth
36 whose permanency goal is another planned permanent living ar-
37 rangement, the department shall document:
38 1. The intensive, ongoing, and, as of the date of the hear-
39 ing, unsuccessful efforts made to place the youth with a par-
40 ent, in an adoptive placement, in a guardianship, or in the
41 legal custody of the department in a placement with a fit and
42 willing relative, including an adult sibling; and
43 2. Why another planned permanent living arrangement is the
44 best permanency plan for the youth and a compelling reason
45 why, as of the date of the review hearing, it would not be in
46 the best interest of the child to be placed permanently with
47 a parent, in an adoptive placement, in a guardianship, or in
48 the legal custody of the department in a placement with a fit
49 and willing relative, including an adult sibling;

(viii) To make findings regarding a permanency goal of another planned permanent living arrangement. For youth whose permanency goal is another planned permanent living arrangement, the court shall make written, case-specific findings, as of the date of the hearing, that:

1. Another planned permanent living arrangement is the best permanency goal for the youth; and

2. There are compelling reasons why it is not in the best interest of the youth to be placed permanently with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling;

(ix) To document and inquire regarding psychotropic medication. At each review hearing, if the child is being treated with psychotropic medication, these additional requirements shall apply:

1. The department shall report to the court the medication and dosage prescribed for the child and the medical professional who prescribed the medication; and

2. The court shall inquire as to, and may make any additional inquiry relevant to, the use of psychotropic medication; and

(x) To project, when reasonable, a likely date by which the child may be safely returned to and maintained in the home or placed in another permanent placement.

(b) A status hearing is a review hearing that does not address all or most of the purposes identified in paragraph (a) of this subsection and may be held at the discretion of the court. Neither the department nor the guardian ad litem is required to file a report with the court prior to a status hearing, unless ordered otherwise by the court.

(c) A motion for revocation or modification of an order issued under section 16-1619, Idaho Code, may be filed by the department or any party; provided that no motion may be filed by the respondents under this section within three (3) months of a prior hearing on care and placement of the child. Notice of a motion for review of a child's case shall be provided to the parents and other legal guardians, the prosecuting attorney or deputy attorney general, the guardian ad litem, the attorney for the child, the department and foster parents.

(d) If the motion filed under paragraph (c) of this subsection alleges that the child's best interests are no longer served by carrying out the order issued under section 16-1619, Idaho Code, or that the department or other authorized agency has failed to provide adequate care for the child, the court shall hold a hearing on the motion.

(e) The department or authorized agency may move the court at any time to vacate any order placing a child in its custody or under its protective supervision.

(2) Permanency plan and hearing.

(a) The permanency plan shall include a permanency goal. The permanency goal may be one (1) of the following: continued efforts at reunification, in the absence of a judicial determination of aggravated circumstances; or termination of parental rights and adoption, guardianship or, for youth age sixteen (16) years and older only, an-

1 other planned permanent living arrangement. Every permanency plan
2 shall include the information set forth in section 16-1621(3) (a) and
3 (b), Idaho Code. If the permanency plan has reunification as a per-
4 manency goal, the plan shall include information set forth in section
5 16-1621(3) (c), Idaho Code; however, if the circumstances that caused
6 the child to be placed into protective custody resulted in a conviction
7 for lewd and lascivious conduct or felony injury to a child, if the child
8 has been in protective custody for more than six (6) months, or if a
9 high risk of repeat maltreatment or reentry into foster care exists due
10 to a parent's recent completion of substance abuse treatment or other
11 compelling circumstances, then the permanency plan shall include a
12 period of protective supervision or trial home visit period of no less
13 than ninety (90) days prior to the court vacating the case. During the
14 protective supervision or trial home visit period, the department shall
15 make regular home visits. During the protective supervision or trial
16 home visit period, the court shall hold one (1) or more review hearings
17 for each permanency plan where a period of protective supervision or a
18 trial home visit has been imposed and may require participation in sup-
19 portive services, including community home visiting and peer-to-peer
20 mentoring. Families reunified following a period of protective super-
21 vision or a trial home visit should be encouraged by the department or
22 the court to continue to participate in supportive services when ben-
23 eficial and appropriate. If the permanency plan has a permanency goal
24 other than reunification, the plan shall include the information set
25 forth in section 16-1621(3) (d), Idaho Code, and if the permanency goal
26 is termination of parental rights and adoption, then in addition to the
27 information set forth in section 16-1620(3), Idaho Code, the permanency
28 plan shall also name the proposed adoptive parents when known. If the
29 adoptive parents are not known at the time the permanency plan is pre-
30 pared, then the department shall amend the plan to name the proposed
31 adoptive parents as soon as such person or persons become known. The
32 court may approve a permanency plan that includes a primary goal and a
33 concurrent goal. As used in this paragraph, "trial home visit" means
34 that a child is returned to the care of the parent or guardian from whom
35 the child was removed with the department continuing to have legal cus-
36 tody of the child.

37 (b) A permanency hearing shall be held no later than twelve (12) months
38 from the date the child is removed from the home or the date of the
39 court's order taking jurisdiction under this chapter, whichever occurs
40 first, and at least every twelve (12) months thereafter, as long as the
41 court has jurisdiction over the child. The court shall approve, reject
42 or modify the permanency plan of the department and review progress in
43 accomplishing the permanency goal. The permanency plan, as approved by
44 the court, shall be entered into the record as an order of the court. A
45 permanency hearing may be held at any time and may be combined with the
46 review hearing required under subsection (1) of this section.

47 (c) The court shall make written, case-specific findings whether the
48 department made reasonable efforts to finalize the primary permanency
49 goal in effect for the child. Lack of reasonable efforts to reunify may

1 be a basis for an order approving a permanency plan with a permanency
2 goal of reunification.

3 (d) Where the permanency goal is not reunification, the hearing shall
4 include a review of the department's consideration of options for
5 in-state and out-of-state placement of the child. In the case of a
6 child in an out-of-state placement, the court shall determine whether
7 the out-of-state placement continues to be appropriate and in the best
8 interest of the child.

9 (e) The court shall ask each youth age twelve (12) years and older about
10 his desired permanency outcome and discuss with the youth his current
11 permanency plan. In the case of a child who has attained the age of four-
12 teen (14) years and older, the hearing shall include a determination of
13 the services needed to assist the youth to make the transition from fos-
14 ter care to successful adulthood.

15 (f) The court may approve a primary permanency goal of another planned
16 permanent living arrangement only for youth age sixteen (16) years or
17 older and only upon written, case-specific findings that, as of the date
18 of the hearing:

19 (i) Another planned permanent living arrangement is the best per-
20 manency goal for the youth; and

21 (ii) There are compelling reasons why it is not in the best inter-
22 est of the youth to be placed permanently with a parent, in an adop-
23 tive placement, in a guardianship, or in the legal custody of the
24 department in a placement with a fit and willing relative, includ-
25 ing an adult sibling.

26 (g) If the child has been in the temporary or legal custody of the de-
27 partment for twelve (12) of the most recent twenty-two (22) months, the
28 department shall file, prior to the last day of the fifteenth month, a
29 petition to terminate parental rights, unless the court finds that:

30 (i) The child is placed permanently with a relative;

31 (ii) There are compelling reasons why termination of parental
32 rights is not in the best interests of the child; or

33 (iii) The department has failed to provide reasonable efforts to
34 reunify the child with his family.

35 (h) The department shall document and the court shall inquire:

36 (i) As to the efforts made to ensure educational stability for the
37 child, including the efforts made to keep the child in the school
38 ~~in which the child is enrolled at the time of placement of origin~~ or
39 that remaining in the school is not in the child's best interests;
40 and

41 (ii) That siblings were placed together or, if siblings were not
42 placed together, the efforts made to place siblings together, the
43 reasons why siblings were not placed together or why a joint place-
44 ment would be contrary to the safety or well-being of one (1) or
45 more of the siblings and a plan for ensuring frequent visitation or
46 ongoing interaction among siblings, unless visitation or ongoing
47 interaction would be contrary to the safety or well-being of one
48 (1) or more of the siblings.

1 (i) If there is reason to believe that the child is an Indian child and
2 there has not been a final determination regarding the child's status as
3 an Indian child, the department shall document and the court shall:

4 (i) Inquire about the efforts that have been made since the last
5 hearing to determine whether the child is an Indian child; and

6 (ii) Determine that the department has made active efforts to work
7 with all tribes of which the child may be a member to verify whether
8 the child is a member or eligible for membership.

9 (j) At each permanency hearing, if the child is being treated with psy-
10 chotropic medication, these additional requirements shall apply:

11 (i) The department shall report to the court the medication and
12 dosage prescribed for the child and the medical professional who
13 prescribed the medication; and

14 (ii) The court shall inquire as to, and may make any additional
15 inquiry relevant to, the use of psychotropic medication.

16 (k) The court may authorize the department to suspend further efforts
17 to reunify the child with the child's parent, pending further order of
18 the court, when a permanency plan is approved by the court and the perma-
19 nency plan does not include a permanency goal of reunification.

20 (3) If a youth is in the legal custody of the department or other autho-
21 rized agency and is within ninety (90) days of his eighteenth birthday, the
22 department shall file a report with the court that includes the department's
23 transition plan for the youth. The court shall have a review or permanency
24 hearing at which the court shall:

25 (a) Discuss with the youth his or her transition plan; and

26 (b) Review the transition plan with the youth for purposes of ensur-
27 ing that the plan provides the services necessary to allow the youth to
28 transition to a successful adulthood.

29 (4) If a child is in the legal custody of the department and the court
30 has approved placement of the child in a qualified residential treatment
31 program, then at each review hearing pursuant to subsection (1) (a) of this
32 section and at each permanency hearing pursuant to subsection (2) (b) of this
33 section the department shall document:

34 (a) That ongoing assessment of the strengths and needs of the child con-
35 tinues to support the determination that the needs of the child cannot
36 be met through placement in a foster family home, that the placement in
37 a qualified residential treatment program provides the most effective
38 and appropriate level of care for the child that is in the least restric-
39 tive environment, and that the placement is consistent with the short-
40 term and long-term goals for the child, as specified in the permanency
41 plan for the child;

42 (b) The specific treatment or service needs that will be met for the
43 child in the placement and the length of time the child is expected to
44 need the treatment or services; and

45 (c) The efforts made by the department to prepare the child to return
46 home or to be placed with a fit and willing relative, a legal guardian,
47 or an adoptive parent or in a foster family home.

48 (5) Notwithstanding any provision of law to the contrary, the court may
49 order extended foster care for a person between the ages of eighteen (18) and
50 twenty-three (23) years to help such person achieve a successful transition

1 to adulthood, provided such person must have been in the custody of the de-
 2 partment until his eighteenth birthday and must meet the criteria set forth
 3 in 42 U.S.C. 675(8) (B) (iv). The extension shall be for a fixed period of time
 4 and shall not extend past the person's twenty-third birthday.

5 SECTION 7. That Chapter 16, Title 16, Idaho Code, be, and the same is
 6 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 7 ignated as Section 16-1625A, Idaho Code, and to read as follows:

8 16-1625A. SCHOOL OF ORIGIN HEARINGS. (1) Whenever a child is removed
 9 from the child's home by the department pursuant to this chapter, the de-
 10 partment shall immediately determine if it is in the best interests of the
 11 child to remain in the school of origin. There shall be a presumption that
 12 the school of origin is in the child's best interests. Parents have a right
 13 to choose the form of education for their children.

14 (a) The department shall provide formal written notice of its deter-
 15 mination to the parties, including the child, parent, guardian, and
 16 guardian ad litem, no later than three (3) business days after the date
 17 on which the determination is made. The written notice shall include
 18 the factors that form the basis of the department's decision. Proof of
 19 service of such notice shall be filed with the court.

20 (b) Any party may object to the department's determination no later
 21 than fourteen (14) days after receipt of such notice by filing the ob-
 22 jection with the court.

23 (c) The child shall remain in the school of origin until the time for ob-
 24 jection has passed and until any dispute is resolved, except as provided
 25 in subsection (5) of this section.

26 (d) The department shall bear the burden of proof that the school place-
 27 ment decision is in the child's best interests and, if the child is moved
 28 from the school of origin, why the department cannot make reasonable ac-
 29 commodations to keep the child in the school of origin.

30 (2) The court, on its own accord or upon a formal objection from a party,
 31 shall hold an evidentiary hearing, at which:

32 (a) The parent or guardian or guardian ad litem of the child may present
 33 evidence regarding how the child remaining in the school of origin is in
 34 the best interests of the child;

35 (b) The child may provide testimony regarding whether the child be-
 36 lieves remaining in the school of origin is in the best interests of the
 37 child; and

38 (c) The department may present evidence regarding how placement in a
 39 school other than the school of origin is in the best interests of the
 40 child.

41 (3) At the conclusion of a hearing held pursuant to subsection (2) of
 42 this section, the court shall make a best interests determination regarding
 43 the school placement of the child and may order that the child remain in the
 44 child's school of origin or be moved from the child's school of origin.

45 (4) A hearing requested pursuant to subsection (2) of this section
 46 shall be held within fourteen (14) days of the date of such request.

47 (5) The provisions of this section shall not apply to a child who has
 48 been found to be without proper education due to a failure to comply with sec-
 49 tion 33-202, Idaho Code.

1 (6) If at any time the department or the court determines that contin-
2 ued placement in the school of origin will jeopardize the child's immediate
3 physical safety, the department may immediately remove the child from the
4 school and shall notify the child's attorney, parents, and guardian ad litem
5 on the same business day. Any party may object to the decision to change the
6 child's school placement no later than fourteen (14) days after receipt of
7 such notice. If any party objects to the change in school placement, a hear-
8 ing shall be held pursuant to subsection (2) of this section.

9 SECTION 8. An emergency existing therefor, which emergency is hereby
10 declared to exist, this act shall be in full force and effect on and after
11 July 1, 2026.